



February 3, 2025



Mr. Blue Parrish or Ms. Carissa Money
Colorado Department of Public Health and Environment
Air Pollution Control Division
Operating Permits Unit
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, Colorado 80246-1530

Via Email

RE: Title V Annual Compliance Certification Report – 1/1/2025-1/31/2025
Title V Semiannual Monitoring and Permit Deviation Report – 1/1/2025-1/31/2025
Title V Operating Permit 95OPBO082
CEMEX Lyons Cement Plant
Facility AIRS ID - CO 0130003

Dear Mr. Parrish and/or Ms. Money:

As requested as part of the newly issued Title V Operating Permit, effective February 1, 2025, enclosed are the following reports associated with the closure of the previous Title V Operating Permit 95OPBO082 of the Lyons Cement Plant, issued March 1, 2017 and revised November 17, 2017, Facility AIRS ID - CO 0130003:

1. Title V Annual Compliance Certification Report – Calendar Year 2025 – 1/1/2025-1/31/2025
2. Title V Semiannual Monitoring and Permit Deviation Report – 1/1/2025 – 1/31/2025

Please contact me at (863) 602-8024 or through my email, robing.simons@cemex.com, should you have questions or concerns about this submittal.

Sincerely,

A handwritten signature in blue ink, appearing to read "Robin G. Simons".

Robin G. Simons
Environmental Manager
Lyons Cement Plant

Cc: Mr. Dave Huber, CDPHE, via email
Ms. Gabi Hoefler, BCPH, via email

United States Operations
P O Box 529, Lyons, CO 80540
Phone (303) 823-2100, Fax (303) 823-2199

T5 SAR, ACC

Annual Compliance Certification Report
January 1, 2025 to January 31, 2025



FACILITY NAME: CEMEX Construction Materials South, LLC – Lyons Cement Plant

OPERATING PERMIT NO: 95OPBO082

REPORTING PERIOD: January 1, 2025 – January 31, 2025

I. Facility Status

X During the entire reporting period, this source was in compliance with **ALL** terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference. The method(s) used to determine compliance is/are the method(s) specified in the Permit.

___ With the possible exception of the deviations identified in the table below, this source was in compliance with all terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference, during the entire reporting period. The method used to determine compliance for each term and condition is the method specified in the Permit, unless otherwise indicated and described in the deviation report(s). Note that not all deviations are considered violations.

Operating Permit Unit ID	Unit Description	Deviations Reported ¹		Monitoring Method per Permit? ²		Was Compliance Continuous or Intermittent? ³	
		Previous	Current	YES	NO	Continuous	Intermittent
P017	Dowe Flats Quarry Fugitive Emission Sources & Lyons Quarry			X		X	
P017	Dowe Flats Quarry – Point Source Emissions			X		X	
P018	General Fugitive Emissions Requirements			X		X	
P000	Raw Material Storage and Handling at Plant Site			X		X	
P001	Primary Crusher (Plant Site)			X		X	
P002	Raw Materials Drying			X		X	
P003	Secondary Crushing, Screen, Silo, Belt Transfer			X		X	
P004	Raw Material Storage Silos			X		X	
P005	Raw Mill Grinding			X		X	
P006	Homogenizing and Blending			X		X	
P007 & P008	Kiln Burning and Clinker Cooling and Transfer to Storage for Finish Mill			X		X	
P009	Clinker and Gypsum/Additive Silos and Weigh Feeders (Storage and Transfer to Finish Mill)			X		X	
P010	Sheltered (A-Frame) Clinker Storage and Reclaim			X		X	
P015	Outdoor Clinker Piles and Handling			X		X	

Annual Compliance Certification Report

January 1, 2025 to January 31, 2025

Operating Permit Unit ID	Unit Description	Deviations Reported ¹		Monitoring Method per Permit? ²		Was Compliance Continuous or Intermittent? ³	
		Previous	Current	YES	NO	Continuous	Intermittent
P011 & P012	Cement Finish Mill and Auxiliaries			X		X	
P013	Cement Silos/Packhouse/Loadout			X		X	
P014	Material Handling System – Load-In and Load-out			X		X	
P007A	Handling and Processing of CKD and Raw Material Waste Dust			X		X	
P050	Cement Rail Car Unloading System			X		X	
	Gasoline Storage Tank			X		X	
	Cold Cleaner Solvent Vats			X		X	
LIS-1	Lime storage silo			X		X	
LIS-2	Lime weigh hopper			X		X	
A-Pit Pump	Diesel fuel-fired engine, rated at 90 hp.			X		X	
DF 6" Pump	Diesel fuel-fired engine, rated at 80 hp			X		X	
DF 8" Pump	Diesel fuel-fired engine, rated at 84 hp			X		X	
Kiln Engine	Natural gas-fired engine, rated at 230 hp (Emergency Engine)			X		X	
Flood Engine	Diesel fuel-fired engine, rated at 99 hp (Emergency Engine)			X		X	
	General Conditions			X		X	
	Insignificant Activities ⁴			X		X	

¹ If deviations were noted in a previous deviation report, put an "X" under "previous". If deviations were noted in the current deviation report (i.e. for the last six months of the annual reporting period), put an "X" under "current". Mark both columns if both apply.

² Note whether the method(s) used to determine the compliance status with each term and condition was the method(s) specified in the permit. If it was not, mark "no" and attach additional information/explanation. (See additional information below.)

³ Note whether the compliance status with of each term and condition provided was continuous or intermittent. "Intermittent Compliance" can mean either that noncompliance has occurred or that the owner or operator has data sufficient to certify compliance only on an intermittent basis. Certification of intermittent compliance therefore does not necessarily mean that any noncompliance has occurred.

NOTE:

The Periodic Monitoring requirements of the Operating Permit program rule are intended to provide assurance that even in the absence of a continuous system of monitoring the Title V source can demonstrate whether it has operated in continuous compliance for the duration of the reporting period. Therefore, if a source 1) conducts all of the monitoring and recordkeeping required in its permit, even if such activities are done periodically and not continuously, and if 2) such monitoring and recordkeeping does not indicate non-compliance, and if 3) the Responsible Official is not aware of any credible evidence that indicates non-compliance, then the Responsible Official can certify that the emission point(s) in question were in continuous compliance during the applicable time period.

⁴ Compliance status for these sources shall be based on a reasonable inquiry using readily available information.

Annual Compliance Certification Report

January 1, 2025 to January 31, 2025

II. Status for Accidental Release Prevention Program:

- A. This facility _____ is subject X is not subject to the provisions of the Accidental Release Prevention Program (Section 112(r) of the Federal Clean Air Act)
- B. If subject: The facility _____ is _____ is not in compliance with all the requirements of section 112(r).
1. A Risk Management Plan _____ will be _____ has been submitted to the appropriate authority and/or the designated central location by the required date.

III. Certification

All information for the Annual Compliance Certification must be certified by a responsible official as defined in Colorado Regulation No. 3, Part A, Section I.B. This signed certification document must be packaged with the documents being submitted.

I have reviewed this certification in its entirety and, based on information and belief formed after reasonable inquiry, I certify that the statements and information contained in this certification are true, accurate and complete.

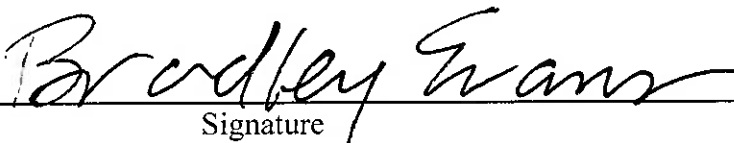
Please note that the Colorado Statutes state that any person who knowingly, as defined in § 18-1-501(6), C.R.S., makes any false material statement, representation, or certification in this document is guilty of a misdemeanor and may be punished in accordance with the provisions of § 25-7 122.1, C.R.S.

Bradley A. Evans

Plant Manager

Printed or Typed Name

Title



Signature

2-27-25

Date Signed

NOTE: All compliance certifications shall be submitted to the Air Pollution Control Division and to the Environmental Protection Agency at the addresses listed in Appendix D of this Permit.

Annual Compliance Certification Report

January 1, 2025 to January 31, 2025

FACILITY NAME: CEMEX Construction Materials South, LLC – Lyons Cement Plant

OPERATING PERMIT NO: 95OPBO082

REPORTING PERIOD: January 1, 2025 – January 31, 2025

I. Facility Status

X During the entire reporting period, this source was in compliance with **ALL** terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference. The method(s) used to determine compliance is/are the method(s) specified in the Permit.

___ With the possible exception of the deviations identified in the table below, this source was in compliance with all terms and conditions contained in the Permit, each term and condition of which is identified and included by this reference, during the entire reporting period. The method used to determine compliance for each term and condition is the method specified in the Permit, unless otherwise indicated and described in the deviation report(s). Note that not all deviations are considered violations.

Operating Permit Unit ID	Unit Description	Deviations Reported ¹		Monitoring Method per Permit? ²		Was Compliance Continuous or Intermittent? ³	
		Previous	Current	YES	NO	Continuous	Intermittent
P017	Dowe Flats Quarry Fugitive Emission Sources & Lyons Quarry			X		X	
P017	Dowe Flats Quarry – Point Source Emissions			X		X	
P018	General Fugitive Emissions Requirements			X		X	
P000	Raw Material Storage and Handling at Plant Site			X		X	
P001	Primary Crusher (Plant Site)			X		X	
P002	Raw Materials Drying	X		X		X	
P003	Secondary Crushing, Screen, Silo, Belt Transfer			X		X	
P004	Raw Material Storage Silos			X		X	
P005	Raw Mill Grinding			X		X	
P006	Homogenizing and Blending			X		X	
P007 & P008	Kiln Burning and Clinker Cooling and Transfer to Storage for Finish Mill	X		X		X	
P009	Clinker and Gypsum/Additive Silos and Weigh Feeders (Storage and Transfer to Finish Mill)	X		X		X	
P010	Sheltered (A-Frame) Clinker Storage and Reclaim			X		X	
P015	Outdoor Clinker Piles and Handling			X		X	

Annual Compliance Certification Report

January 1, 2025 to January 31, 2025

Operating Permit Unit ID	Unit Description	Deviations Reported ¹		Monitoring Method per Permit? ²		Was Compliance Continuous or Intermittent? ³	
		Previous	Current	YES	NO	Continuous	Intermittent
P011 & P012	Cement Finish Mill and Auxiliaries			X		X	
P013	Cement Silos/Packhouse/Loadout			X		X	
P014	Material Handling System – Load-In and Load-out			X		X	
P007A	Handling and Processing of CKD and Raw Material Waste Dust			X		X	
P050	Cement Rail Car Unloading System			X		X	
	Gasoline Storage Tank			X		X	
	Cold Cleaner Solvent Vats			X		X	
LIS-1	Lime storage silo			X		X	
LIS-2	Lime weigh hopper			X		X	
A-Pit Pump	Diesel fuel-fired engine, rated at 90 hp.			X		X	
DF 6" Pump	Diesel fuel-fired engine, rated at 80 hp			X		X	
DF 8" Pump	Diesel fuel-fired engine, rated at 84 hp			X		X	
Kiln Engine	Natural gas-fired engine, rated at 230 hp (Emergency Engine)			X		X	
Flood Engine	Diesel fuel-fired engine, rated at 99 hp (Emergency Engine)			X		X	
	General Conditions			X		X	
	Insignificant Activities ⁴			X		X	

¹ If deviations were noted in a previous deviation report, put an "X" under "previous". If deviations were noted in the current deviation report (i.e. for the last six months of the annual reporting period), put an "X" under "current". Mark both columns if both apply.

² Note whether the method(s) used to determine the compliance status with each term and condition was the method(s) specified in the permit. If it was not, mark "no" and attach additional information/explanation. (See additional information below.)

³ Note whether the compliance status with of each term and condition provided was continuous or intermittent. "Intermittent Compliance" can mean either that noncompliance has occurred or that the owner or operator has data sufficient to certify compliance only on an intermittent basis. Certification of intermittent compliance therefore does not necessarily mean that any noncompliance has occurred.

NOTE:

The Periodic Monitoring requirements of the Operating Permit program rule are intended to provide assurance that even in the absence of a continuous system of monitoring the Title V source can demonstrate whether it has operated in continuous compliance for the duration of the reporting period. Therefore, if a source 1) conducts all of the monitoring and recordkeeping required in its permit, even if such activities are done periodically and not continuously, and if 2) such monitoring and recordkeeping does not indicate non-compliance, and if 3) the Responsible Official is not aware of any credible evidence that indicates non-compliance, then the Responsible Official can certify that the emission point(s) in question were in continuous compliance during the applicable time period.

⁴ Compliance status for these sources shall be based on a reasonable inquiry using readily available information.

Annual Compliance Certification Report

January 1, 2025 to January 31, 2025

II. Status for Accidental Release Prevention Program:

- A. This facility _____ is subject X is not subject to the provisions of the Accidental Release Prevention Program (Section 112(r) of the Federal Clean Air Act)
- B. If subject: The facility _____ is _____ is not in compliance with all the requirements of section 112(r).
1. A Risk Management Plan _____ will be _____ has been submitted to the appropriate authority and/or the designated central location by the required date.

III. Certification

All information for the Annual Compliance Certification must be certified by a responsible official as defined in Colorado Regulation No. 3, Part A, Section I.B. This signed certification document must be packaged with the documents being submitted.

I have reviewed this certification in its entirety and, based on information and belief formed after reasonable inquiry, I certify that the statements and information contained in this certification are true, accurate and complete.

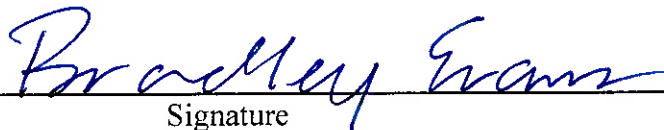
Please note that the Colorado Statutes state that any person who knowingly, as defined in § 18-1-501(6), C.R.S., makes any false material statement, representation, or certification in this document is guilty of a misdemeanor and may be punished in accordance with the provisions of § 25-7 122.1, C.R.S.

Bradley A. Evans

Plant Manager

Printed or Typed Name

Title



Signature

2-4-25

Date Signed

NOTE: All compliance certifications shall be submitted to the Air Pollution Control Division and to the Environmental Protection Agency at the addresses listed in Appendix D of this Permit.

Semiannual Title V Monitoring and Permit Deviation Report

Operating Permit 95OPBO082

AIRS ID 013-0003

CEMEX Lyons Cement Plant

01/01/2025 to 01/31/2025

APPENDIX D

Notification Addresses

1. **Air Pollution Control Division**

Air Pollution Control Division

Operating Permits Unit

APCD-SS-B1

4300 Cherry Creek Drive S.

Denver, CO 80246-1530

ATTN: Blue Parrish – OR – Carissa Money

2. **United States Environmental Protection Agency**

Compliance Notifications:

Office of Enforcement, Compliance and Environmental Justice

Mail Code 8ENF-T

U.S. Environmental Protection Agency, Region VIII

1595 Wynkoop Street

Denver, CO 80202-1129

Note: Deviation reports shall be submitted to the Division at the address given in Appendix D of this permit. No copies need be sent to the U.S. EPA.

SUBMITTAL DEADLINES

First Semi-Annual Monitoring Period:

March 1 – June 30

Subsequent Semi-Annual Monitoring Periods: **July 1 – December 31**, January 1– June 30

Semi-Annual Monitoring Reports:

Due August 1, 2008 & February 1, 2009 & subsequent years

First Annual Compliance Period:

March 1 - December 31

Monitoring and Permit Deviation Report - Part I

Operating Permit Unit ID	Unit Description	Deviations Noted During Period? ¹		Deviation Code ²	Malfunction/ Emergency Condition Reported During Period?	
		YES	NO		YES	NO
P017	Dowe Flats Quarry Fugitive Emission Sources & Lyons Quarry		X			X
P017	Dowe Flats Quarry – Point Source Emissions		X			X
P018	General Fugitive Emissions Requirements		X			X
P000	Raw Material Storage and Handling at Plant Site		X			X
P001	Primary Crusher (Plant Site)		X			X
P002	Raw Materials Drying		X			X
P003	Secondary Crushing, Screen, Silo, Belt Transfer		X			X
P004	Raw Materials Storage Silos		X			X
P005	Raw Mill Grinding		X			X
P006	Homogenizing and Blending		X			X
P007 & P008	Kiln Burning and Clinker Cooling and Transfer to Storage for Finish Mill		X			X
P009	Clinker and Gypsum/Additive Silos and Weigh Feeders (Storage and Transfer to Finish Mill)		X			X
P010	Sheltered (A-Frame) Clinker Storage and Reclaim		X			X
P015	Outdoor Clinker Piles and Handling		X			X
P011 & P012	Cement Finish Mill and Auxiliaries		X			X
P013	Cement Silos/Packhouse/Loadout		X			X
P014	Material Handling System – Load-In and Load-Out		X			X
P007A	Handling and Processing of CKD and Raw Material Waste Dust		X			X
P050	Cement Rail Car Unloading System		X			X
	Gasoline Storage Tank		X			X
	Cold Cleaner Solvent Vats		X			X
LIS-1	Lime storage silo		X			X
LIS-2	Lime weigh hopper		X			X
A-Pit Pump	Diesel fuel-fired engine, rated at 90 hp.		X			X
DF 6" Pump	Diesel fuel-fired engine, rated at 80 hp		X			X
DF 8" Pump	Diesel fuel-fired engine, rated at 84 hp		X			X
Kiln Engine	Natural gas-fired engine, rated at 230 hp (Emergency Engine)		X			X
Flood Engine	Diesel fuel-fired engine, rated at 99 hp (Emergency Engine)		X			X
	Insignificant Activities		X			X
	General Conditions		X			X

¹ See previous discussion regarding what is considered to be a deviation. Determination of whether or not a deviation has occurred shall be based on a reasonable inquiry using readily available information.

²Use the following entries as appropriate:

- | | |
|-------------------------|---|
| 1 = Standard: | When the requirement is an emission limit or standard |
| 2 = Process: | When the requirement is a production/process limit |
| 3 = Monitor: | When the requirement is monitoring |
| 4 = Test: | When the requirement is testing |
| 5 = Maintenance: | When required maintenance is not performed |
| 6 = Record: | When the requirement is recordkeeping |
| 7 = Report: | When the requirement is reporting |
| 8 = CAM: | A situation in which an excursion or exceedance as defined in 40 CFR Part 64 (the Compliance Assurance Monitoring (CAM) Rule) has occurred. |
| 9 = Other: | When the deviation is not covered by any of the above categories |

Monitoring and Permit Deviation Report - Part III

REPORT CERTIFICATION

SOURCE NAME: CEMEX Construction Materials South, LLC – Lyons Cement Plant

FACILITY IDENTIFICATION NUMBER: 013-0003

PERMIT NUMBER: 95OPBO082

All information for the Title V Semi-Annual Deviation Reports must be certified by a responsible official as defined in Colorado Regulation No. 3, Part A, Section I.B.38. This signed certification document must be packaged with the documents being submitted.

STATEMENT OF COMPLETENESS

I have reviewed the information being submitted in its entirety and, based on information and belief formed after reasonable inquiry, I certify that the statements and information contained in this submittal are true, accurate and complete.

Please note that the Colorado Statutes state that any person who knowingly, as defined in Sub-Section 18-1-501(6), C.R.S., makes any false material statement, representation, or certification in this document is guilty of a misdemeanor and may be punished in accordance with the provisions of Sub-Section 25-7 122.1, C.R.S.

Mr. Bradley A. Evans

Printed or Typed Name

Plant Manager

Title



Signature of Responsible Official

2-4-25

Date Signed

Note: Deviation reports shall be submitted to the Division at the address given in Appendix D of this permit. No copies need be sent to the U.S. EPA.



COLORADO
Department of Public
Health & Environment

January 15, 2025

Sent Via E-Mail

Ms. Robin Simons
Environmental Manager
CEMEX Construction Material South, LLC
P. O. Box 529
Lyons, CO 80540

RE: CEMEX Construction Material South, LLC - Lyons Cement Plant
Title V Renewal Operating Permit Issuance

Dear Ms. Simons:

Please find enclosed the Title V Renewal Operating Permit for your facility. The issuance date is February 1, 2025 and the permit expires February 1, 2030. You should continue to operate under the conditions of the existing Title V Operating Permit until the permit takes effect on February 1, 2025. Note that although the existing Title V Operating Permit has an expiration date of March 1, 2022 all of its terms and conditions shall not expire until the renewal operating permit is issued and any previously extended permit shield continues in full force and operation (Colorado Regulation No. 3, Part C, Section IV.C).

The first monitoring and compliance reporting deadlines for the renewal permit may be found on the page following the cover sheet. An electronic version of this permit, along with its corresponding technical review document, may be currently downloaded from the Operating Permits Webpage at www.colorado.gov/cdphe/airTitleV.

Upon its effective date (February 1, 2025), this renewal permit replaces the existing Title V Operating Permit and all copies of the existing permit should be destroyed. In addition, in regard to the monitoring and deviation reports and compliance certifications for the existing Title V permit, please submit these reports for the period of January 1 - January 31 (monitoring and deviation report) and January 1 - January 31 (compliance certification) within one (1) calendar month following the effective date of the renewal permit for the period between the last report submittal and the effective date of the renewal permit.

Please do not hesitate to contact me at (303) 692-3267 or jackie.joyce@state.co.us should you have any questions or concerns.

Sincerely,

Jacqueline Joyce
Permit Engineer
Operating Permit Unit
Air Pollution Control Division

Enclosures

